

AMBO UNIVERSITY
SCHOOL OF LAW
CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

1. Business Organization under new Commercial Code of Ethiopia are always

- A. Commercial in nature
- B. Civil in nature
- C. Either commercial or civil in nature
- D. Public enterprise

Answer: A

2. Which of the following is not true about share?

- A. Share is either movable or immovable property.
- B. Share gives rights and liabilities to the holder.
- C. Share is the interest of the shareholders in the company measured by the sum of money.
- D. Shareholder is a part-owner of the company

Answer: A

3. Joint venture is

- A. The only business organization which has not legal entity.
- B. A partnership having legal personality.
- C. A partnership whose partners are active in all business activities.
- D. A partnership having a firm name of its partner.

Answer: A

4. One is not correct about Shares in PLC

- A. Unless otherwise agreed needs unanimous consent to transfer them to outsiders.
- B. Are freely transferred among their shareholders.
- C. Gives preemption right to its shareholders

D. Shares are transmitted to the heirs of the shareholder.

Answer: A

5. A provisional document that a share company gives to its subscribers until share certificates are issued is known as:

A. Share warrant

B. Bearer share

C. Debenture

D. Prospectus

E. Registered share

Answer: A

6. Identify the correct statement about traders according to Ethiopian new commercial code

A. Provision of educational services and transfer and dissemination of knowledge except Education by handicraft

B. It exhaustively list acts that are considered as trade

C. Fishing conducted with the assistance of two employees is considered as trade

D. A person that sells the products of the land they exploit or use is a trader

Answer: A

7. One is **not** elements of business

A. Equipment

B. Raw materials

C. Land

D. Trade mark

Answer: A

8. Unilateral cancellation of contracts by one party is possible where: -

- A. The other contracting party dies or becomes insolvent before the due date of the contract
- B. A party in default fails to discharge his contractual obligation within a period of grace granted to him by a court of law
- C. The contract is a contract of diligence or a contract of result
- D. There is an undue delay of the performance of the contract for whatever reason
- E. The other party fails to discharge his obligation after a default notice

ANSWER: A

9. Nine years ago, Mr. N lent Mr. D 23000 birr. Which one of the following agreement interrupts the period of limitation?

- A. An agreement that Mr. Z pays the loan if Mr. D fails
- B. An agreement that Mr. D sells a house mortgaged for the loan to Mr. C
- C. An agreement that Mr. N sells his car to Mr. D at 23000 birr
- D. An agreement that Mr. D sells his house to Mr. N

ANSWER: A

10. Identify one which is not a validly element of contract under Ethiopian law

- A. Residence
- B. Object
- C. Age
- D. Nationality
- E. Form

ANSWER: A

11. In Ethiopia, a contract of surety is an accessory obligation because;-

- A. It cannot be established in the absence of a principal legal or contractual obligation and it normally dies concomitant to the death of the principal obligation
- B. Of the presence of plurality of guarantors
- C. It can be established without obtaining the consent of the guarantor and the creditor

D. It is an obligation imposed by the law to insure security of transaction with a view to enhance confidence of the contracting parties

E. It remains valid even after the extinction of the principal obligation which necessitated the creation of the contract of surety

ANSWER: A

12. What roles do courts of law play in relation to contracts?

A. Courts play some roles with regards to variation, termination and set-off contracts in accordance with the relevant provisions of the civil code

B. Courts play some roles in the formation of contract where the parties fail to come to terms as to the final terms and condition of the contract

C. Courts play some roles for the variation and novation of contracts

D. Courts do have the power to make contracts by positive interpretation of a court containing vague terms and conditions

E. Courts assist the intending contracting parties during the time of offer and acceptance

ANSWER: A

13. One of the following is true about prove of will

A. Any one claiming the existence of will shall present the original document of will

B. The existence of public will can be proved by witness where the document is destroyed

C. The existence of Holographic will can be proved by witness where the document is destroyed

D. There is condition where there is oral will must be proved by written evidence

E. The existence of will can be proved by producing eye witness who destroyed the document

ANSWER: A

14. Period of limitation for partition liquidate succession is

A. No limitation

B. 10 years

C. 15 years

D. 3 years

E. 18 years

ANSWER: A

15. Among the following liberalities one is not subject collation.

A. Any expense incurred for the education of the heir

B. Any money that is given to establish the heir

C. Money paid to settle the debts of the heir

D. Property or money given to the heir during his marriage in the form of dowry

E. Payment incurred for education

ANSWER: A

16. Among the following one is not the cause to be unworthy to succeed.

A. An heir intentionally murdered the spouse and not sentenced

B. An heir who intentionally murdered the deceased himself and sentenced

C. An heir intentionally murdered descendant and sentenced

D. An heir intentionally murdered the spouse and sentenced

ANSWER: A

17. One is true about dishersion.

A. Descendant of the testator can be expressly disinherit due to justifiable reason

B. The testator may disinherit his descendant tacitly

C. The heir can claim that the statement of the testator is untrue

D. If the testator wishes to disinherit heirs he must disinherit them expressly

ANSWER: A

18. One of the following is not true regarding unjust enrichment?

A. It has no period of limitation

B. Serves as a filling gap where law of contract and tort regime could not address issue

C. The defendant must acquire benefit

D. The benefit acquired by the defendant must be at the expense of plaintiff

Answer: A

19. All of the following are true in case of mortal accident save one

A. Dependents of the deceased can claim all types of damages

B. Where deceased is the minor below the age of 14, his parents can't claim for material damages

C. A mother of the deceased who has never been supported financially by the latter can claim only moral damages

D. Creditors of the deceased can claim only against the latter's financial interest

Answer: A

20. One of the following is odd regarding the remedy for tort liability

A. Admonition

C. Injunction

B. Restitution

D. Compensation

Answer: A

21. All, except one, are the philosophical justifications behind making the employers liable for the wrongs committed by their employees regardless of the latter's fault

A. The income tax collected from employees

B. The employer is richer than the employee to make the wrongs done good

C. The Economic and moral consideration

D. The employer to spread the loss through insurance or the price of the products.

Answer: A

22. A manufacturer is not liable under tort law for injuries caused due to his product where _____

A. He gives a manufactured product for donation

B. His product caused damage to customer's property

C. The damages resulting from the normal use of the product

D. He delivers the product to victim as a loan

Answer: A

23. Abdi and Bontu concluded their civil marriage in 2015 at Ambo town. They prepared and agreed to the terms and stipulations under their contract of marriage. As per such contract of marriage, each spouse shall retain his/her personal properties up until they will be blessed up with a child and the contract of marriage shall promptly be modified. Later on, Bontu gave birth to Bona in 2016. Nonetheless, Abdi is reluctant to this modification. Based on this hypothetical case which one of the following statements is correctly sound?

A. Bontu can ask for amendment of contract of marriage since the condition under the original contract of marriage materialized to make their personal properties communal subject to approval by the court.

B. Bontu cannot ask for amendment since doing so would affect the interest of the family.

C. Abdi and Bontu can agree to make their amendment be made in oral since they have freedom to do so under the law.

D. Although they have a right to amend their contract of marriage, they should not be required to request for approval since they do have autonomy to do so.

E. Court's approval is a bit of formality requirement. Therefore, it does not bear any significance in relation to amendment made.

Answer: A

24. A husband may Not be presumed to be a father of the child:

A. If the child is born 300 days after the court declared the absence of the husband.

B. If the child is born within 180 days after the dissolution of marriage.

C. If the child is born more than 180 days after the conclusion of the marriage.

D. If the child is born within 300 days after the dissolution of marriage.

E. If the child is born within 180 days after the conclusion of marriage.

Answer: A

25. Carra is 19 years old and a son of Obbo Tola and Adde Ayyantu. He is currently pursuing his education at Ambo University, School of Law. He has got in trouble with his parents as he changed his faith from theirs. Being irritated by his nasty change of heart, they told him that unless he reverted to their faith, they will no longer give him maintenance as they claim that do not have legal responsibility to do so since he is of age (18). He threatened them with law suit if they do not give him maintenance, which they did not do. Which of the following statement is correct based on above-mentioned hypothetical case?

A. Although he attained minimum majority age (18), he is still eligible to get maintenance since he is law student and has got no other source of income. Therefore, Obbo Tola and Adde Ayyantu will be ordered to pay maintenance claim by the court provided that Carra bring court action against his parents.

B. Obbo Tola and Adde Ayyantu will not be ordered to pay maintenance claim since Carra attained minimum majority age.

C. Parents ordered to pay maintenance claim only for their underage children.

D. Carra has got no locus standing in bringing law suit against his parents with respect to maintenance claim.

E. Obbo Tola and Adde Ayyantu have moral responsibility not legal responsibility towards their child to pay him maintenance.

Answer: A

26. One of the following statements is Not true about the nature of marriage

A. All types of marriage follow similar celebration formality.

B. All types of marriage dissolve following similar grounds of dissolution.

C. All types of marriage produce similar legal consequences.

D. All types of marriage shall satisfy the same validity requirements.

E. All types of marriage shall be registered before the competent celebrating officer.

Answer: A

27. Which one of the following statements is sound about family as per relevant Ethiopian laws?

A. As family is the fundamental unit of the society, the FDRE Constitution gives recognition and protection to both marriage and irregular union.

B. The FDRE Constitution does not give recognition to the Irregular Union.

C. As Ethiopia is considered to be religious country, there has been no as such as Irregular Union for it is seen as indecency and sinful act.

D. The degree of prohibited relationship is the same in Oromia and Federal family codes.

E. The effect of declaration of absence on marriage is relative.

Answer: A

28. One is not amongst the effects of possession

- A. A prima facie evidence of ownership of immovable objects
- B. The basis for certain remedies
- C. Determines risk allocation
- D. Assign liability
- E. May create ownership

Answer: A

29. Tesfa took delivery of a bracelet belonging to Chala in good faith from Abdi. Chala can claim his bracelet back, except

- A. The bracelet was entrusted to Abdi and Tesfa purchased it
- B. Tesfa obtained the bracelet gratuitously
- C. The bracelet was stolen and Tesfa purchased it
- D. The bracelet was entrusted to Abdi and Tesfa obtained it gratuitously
- E. The bracelet was stolen and but Tesfa knew the fact after purchase

Answer: A

30. An agreement whereby A undertakes to sell her car to B for birr half million if she decides to sell it within five years is

- A. Right of Preemption
- B. Right of Recovery
- C. Promise of sale
- D. Provision prohibiting assignment
- E. Provision prohibiting attachment

Answer: A

31. Which one is correct order in priority to exercise right of recovery?

- A. Co-owners, descendant, ascendant, brothers
- B. Ascendant, descendant, brothers, co-owners
- C. Co-owners, ascendant, descendant, brothers
- D. Descendant, ascendant, co-owners, brothers
- E. Brothers, co-owners, ascendant, descendant

Answer: A

32. Marsimoy has painted a Mona Liza type beautiful work on a hide belonging to Bonan. Assuming the value of the painting is much greater than the value of the hide, who do you think shall become the owner of the painting?

- A. Marsimoy
- B. Bonan
- C. Both shall become joint owners
- D. Both shall take their respective object
- E. The thing be sold on auction and divide the proceeds

Answer: A

33. Which one is wrongly matched regarding presumption of ownership?

- A. Building – builder
- B. Corporeal chattel – possession
- C. Immovable – title deed
- D. Electric supply –undertaking

E. Party walls – joint

Answer: A

34. His Excellency Mr. Yigezu is the President of the National Regional State of Dabdu and the follower of Ethiopian Orthodox. He lost the recent election to his life-long competitor and now President-elect, His Excellency Mr. Ali, who is the follower of Islamic religion and refused to give him the Presidential office to the Mr. President-elect. Consider State Dabdu as one of Ethiopia's constituent union to which the FDRE Constitution applies, which basic principle is violated by H.E. Mr. Yigezu?

- A. Principle of Constitutionalism
- B. Principle of supremacy of the constitution
- C. Principle of popular Sovereignty
- D. Principle of Secularism
- E. Principle of Sanctity of human rights and fundamental freedoms

Answer: A

35. Political-valve-pressure refers to _____

- A. Impeachment
- B. Vote of confidence
- C. Political-deadlock
- D. Dissolution of parliament

Answer: A

36. The distinction between a presidential system and a parliamentary system lies in:

- A. How the relation between the executive and the legislature is organized.
- B. How the relation between the executive and the judiciary is organized.
- C. How the relation between the legislature and the judiciary is organized.
- D. How the relationship between the legislative, executive and judiciary is organized.

Answer: A

37. Which of the following rights cannot be derogated from in Ethiopia even in emergency situations?

- A. Immunity from torture.
- B. Right to life.
- C. Right to be recognized as a person before the law.
- D. Immunity from imprisonment for failing to discharge civil obligation

Answer: A

38. One of the following is a drawback of FDRE Constitution.

- A. Absence of general limitation clause
- B. Absence of hierarchy among rights
- C. Justiciability of all rights
- D. Comprehensiveness of rights

Answer: A

39. Assume the criminal code contained the following provision: "Any public official who receive bribe with the view to get unlawful enrichment shall be liable to rigorous imprisonment not exceeding 10 years. What is the required moral element of this crime?"

- A. Direct intention
- B. Advertent negligence
- C. Doluseventualis
- D. In direct intention
- E. Knowledge of near certainty

Answer: A

40. Chamiso shot Kejela on the head late in the evening. He then run home and told his wife Alemitu what happened at the bar. She then took his pistol and concealed in conspicuous place.

A. Chamiso is responsible for homicide in the first degree because he committed the crime using the gun and during evening.

B. Chamiso is criminally responsible for homicide, irrespective of cause and effect relation

C. Alemitu is criminally responsible as criminal participation in the crime

D. Chamiso is criminally responsible as homicide in the second degree.

Answer: A

41. Which of the following acts fall under **renunciation**?

A. Chala entered the compound of AtoTola but willfully left it without taking thing

B. Hana poisoned her husband but take him to hospital and save his life.

C. Ato Girma stole a bull from Ato Hora and returned back after two days fear of persecution.

D. Ato Angassa fired on Angatu aiming to hit on her head but missed and hit on her leg.

E. Ato Miressa shouted to Ato Mirgasa but missed the target.

Answer: A

42. Mr. X is the prison guard. He permitted two inmates of the prison, Mr. C and D who are the loyal prisoners to go out for a while to take the rest outside of the prison premises. Unfortunately C and D where found committing crime of robbery. Based on this fact which **one is true**

A. Mr. x is criminally liable with material criminal for crime of robbery

B. Mr. x is criminally liable with moral criminal for crime of robbery

C. Mr. x is not criminally liable for crime of robbery because he has no intention to that effect

D. Mr. X is criminally liable with criminal accomplice for crime of robbery

E. Mr. X is criminally liable with indirect criminal for crime of robbery.

Answer: A

43. Which of the following crimes is **ordinary crime** under Ethiopian criminal code?

A. Crime of homicide

B. Crime of adultery

C. Crime of incest

D. Crime corruption

E. Perjury

Answer: A

44. Identify one of the following alternatives which rightly indicate material concurrence of crime?

A. Mr. X breaks in to somebody's house, steal some property and rape the lady in the house

B. Mr. B kills Mr. A with unlicensed Gun

C. Mr. Y publically raped his sister forcefully.

D. It is committed when single act of accused results violation of several criminal provisions

E. It is committed when single act of the accused harms same injury to several victims

Answer: A

45. Mr. Chala is the most powerful gang leader in the Ambo town Arada Vicinity. He gives instructions to everyone in his locality. On December 21/2023 he instructed Mr. Kabata to go and Robe mr. Morkata's residential house. Mr. Kabata went to mr. Morkata's apartment to robe his residential house. Unfortunately he return buck without enter the compound and failed to accomplish the designed crime due to fear of the guard of the apartment. Based on this hypothetical case, which of the following statement is correct.

A. Both of Mr. Chala and Kabata are not responsible for the crime because mr. Kabata does not cross the point of no return

- B. Mr. Chala is criminally liable as the mastermind because the crime is attempted
- C. Mr. Kabata is not criminally liable because he was acting under duress
- D. Mr. Chala and Kabata was criminally liable for the crime of robbery since they do all things even if it was failed due to external factors.

Answer: A

46. Which of the following is false about employment income tax schedule

- A. Employee's fringe benefit is not taxable under the schedule.
- B. Income from former employer is taxable under the schedule.
- C. Employee's expense is not deductible.
- D. The tax rate is progressive.
- E. Employee's disablement payment is not taxable.

Answer: A

47. Which of the following is true about division of revenue powers in the Ethiopian federal setting;

- A. Regarding revenue power, the constitution clearly divided power of taxing.
- B. In the division of revenue setting residuals are left for regional state
- C. Oromia regional state has a power to tax import and export through Moyal border of Kenya
- D. Taxing corporate entities running its business in regional state is vested to the region where the company carries out its business and federal government.
- E. The company's taxing power is exclusively vested to federal government.

Answer: A

48. The administrative cost to the tax collecting authority and the costs of compliance on the part of tax payer should be kept at minimum. Which of the following principles is best explained by this idea?

- A. principle of efficiency
- B. principal equity

- C. principle of certainty
- D. principle of flexibility
- E. Principle of economy

Answer: A

49. Which one of the following **is incorrect** about allocation of tax power under the Constitution of the Federal Democratic Republic of Ethiopia?

- A. Taxes not specifically allocated to the federal government are always left to the regional states.
- B. Income tax from individual traders is under taxation power of regional states.
- C. Income tax from companies and partnerships is under concurrent power of taxation.
- D. Sales tax on federal enterprises exclusively belongs to the federal government.
- E. To tax and not to tax financial institution is not an issue at all.

Answer: A

50. Which of the following **is true** about Ethiopian VAT?

- A. Ethiopian VAT is destination based hence import is taxed while export is zero rated.
- B. Ethiopian VAT is destination based hence import is taxed while export is tax free
- C. Ethiopian VAT is based on the invoice credit method in which taxpayers are given credit for the VAT paid on output.
- D. VAT is chargeable at a standard rate of 15 per cent on all taxable supplies of goods and services other than those exempted.
- E. VAT is a jurisdiction of federal government.

Answer: A

51. Progressive tax is: -

- A. Tax rate increase as tax base increases
- B. Tax rate decreases as tax base decreases
- C. Tax rate remains the same regardless of increase or decrease of tax base(amount of income subject to tax)

- D. Tax base and tax rate has no relationship
- E. Progressive tax violates principle of equity

Answer: A

52. Which of the following is **not** solution for transfer pricing of multinational company?

- A. Domicile principle.
- B. Arm's length.
- C. Thin capitalization.
- D. Treaty shopping.
- E. Referenced valuation

Answer: A

53. Which one of the following is the most frequent means of creating international rules

- A. International custom
- B. Treaties
- C. General Principles
- D. Judicial decisions
- E. Academic writings

Answer: A

54. In which one of the following situations is the waging of war tolerated?

- A. Collective self-defense
- B. Anticipatory self-defense
- C. Humanitarian intervention
- D. Defense of one's nationals
- E. War of national liberations

Answer: A

55. Which one of the following reservations to a treaty is probably valid under international law?

- A. Reservation accepted by state parties to the treaty.
- B. Reservation incompatible with object and purpose of a treaty
- C. Reservation incompatible with peremptory norms
- D. Reservation not authorized by the treaty in question
- E. Reservation incompatible with customary international law

Answer: A

56. Which of the following is the most widely accepted doctrine of recognition of government

- A. Doctrine of effective control
- B. Doctrine of legitimacy
- C. Estranda doctrine
- D. Stimson doctrine
- E. Doctrine of sovereignty

Answer: A

57. Which one of the following need not own by the country seeking the extradition of the suspect.

- A. Confirmation of reciprocity between the countries
- B. The existence of a prima facie case against the individual sought
- C. The crime alleged is sufficient serious
- D. The likely penalty will be proportional to the crime

Answer: A

58. The continuity principle of state succession does not apply to one of the following situations.

- A. Political and personal treaty

- B. Localized treaties
- C. Territorial grounded treaty
- D. Human right treaties

Answer: A

59. In the formulation of human rights policy at international level, which one of the following detrimentally affected the work of the UN in human rights and other fields of human life?

- A. The increasing Cold War tensions between the Socialist and West States
- B. The economic development of Western World
- C. The evil act of colonization in the third world
- D. The procedural irregularity followed by UN members
- E. The lack of political commitment of States

Answer: A

60. Which one of the following documents did not lay down important bases towards the idea of human rights in earlier times?

- A. The Universal Declaration of Human Rights
- B. The English Bill of Rights of 1689
- C. The Union of Utrecht of 1579 of Netherlands
- D. The Golden Bull of Hungary of 1212
- E. The Magna Charta Libertatum of 1215 of England

Answer: A

61. Human Rights are universal values which involve all elementary pre-conditions for the dignified human existence. Which one of the following justifies the above allegation?

- A. The source of human rights is human dignity

- B. Human rights are subject to precondition to be protected by States
- C. Human rights can be revoked by the holder under some circumstances
- D. Human rights are subject to discretionary power of governments for its fulfilment
- E. The source of human rights is international law

Answer: A

62. Which one of the following human rights can be exercised by the people in groups so that collective human rights?

- A. Freedom to form or join trade unionism
- B. Protection against torture
- C. The right not to be a victim of forced eviction from one's house
- D. The right to medical care
- E. The right to a fair trial

Answer: A

63. The Universal Declaration of Human Rights has no as such binding force on signatory States than political commitment though it laid down some fundamental principles of international nature with respect to human rights. Which one of the following significantly self-evident about the mandatory nature of Universal Declaration of Human Rights in human rights field?

- A. It was a base for the codification of human rights
- B. It was political manifesto
- C. It has set common standards in human rights field
- D. The attainment of customary international law due to the existence of “*opinion juris*” on some of its provision
- E. It created ample opportunity for the creation of supervisory mechanisms on human rights

Answer: A

64. Which one of the following is **not** one of the general principles of International Covenant on the Rights of Child?

- A. Right to punishment
- B. Non-discrimination
- C. Best interests of child
- D. Right to life
- E. Right to development

Answer: A

65. Identify the correct statement from the given alternatives.

- A. Ethiopian mode of proceeding is more shaped towards inquisitorial mode of proceeding.
- B. Inquisitorial mode of proceeding is typical feature of countries following common law legal system
- C. In Countries following Adversarial mode of proceeding judges play active role than judges in countries following Inquisitorial mode of proceeding.
- D. Parties play passive role in countries following adversarial mode of proceeding.

ANSWER: A

66. Which one of the following is wrong about the salient features of the 1965 civil procedure code of Ethiopia?

- A. It was enacted by the then legislative organ.
- B. The code is concise.
- C. It was enacted by the Emperor as decree.
- D. It has four forms of schedules governing different issues.

ANSWER: A

67. Identify true statement about the Ethiopian judicial system in general from the given alternatives.

- A. The concept of cassation over cassation is not alien to the Ethiopian legal system.
- B. Ethiopian Judicial system in the past was decentralized.
- C. The concept of cassation is introduced in to Ethiopian legal system for the first time following the PDRE constitution.
- D. The Country had double court structure beginning from the enactment of the 1931 written constitution.

ANSWER: A

68. _____ is an element of jurisdiction which the 1965 Ethiopian civil procedure code fails to incorporate.

- A. Judicial Jurisdiction
- B. Material Jurisdiction
- C. Local Jurisdiction
- D. Sovereign Jurisdiction

ANSWER: A

69. Which one of the following is true about preliminary objection as incorporated under the 1965 civil procedure code of Ethiopia?

- A. Sustaining preliminary objection by the court results either in dismissing or strike out of the suit.
- B. All preliminary objections can't be raised at the latter stage of the litigation.
- C. It is a right for the plaintiff.
- D. Preliminary objection on the grounds of material jurisdiction has no difference with that raised on grounds of local jurisdiction.

ANSWER: A

70. Which one of the following is correct about right to appeal under the Ethiopian legal system?

- A. An appeal is constitutional, procedural as well as substantive right in Ethiopia.

- B. The Ethiopian civil procedure code has no single room for appeal against interlocutory orders.
- C. The same period of limitation is recognized to lodge an appeal in Ethiopia.
- D. The concept of second appeal is not totally recognized under the Ethiopian Federal courts proclamation No.1234/2013.

ANSWER: A

71. Non-appearance of party plaintiff on the first hearing results in_____.

- A. Dis-missing the case.
- B. Absolutely preventing the plaintiff from exercising his right in a particular case.
- C. Strike out the case.
- D. Payment of compensation for the defendant.

ANSWER: A

72. Assume that a judgment debtor who was duly served fails to appear on the date adjourned for his appearance. Identify the one which is wrong from the given alternatives.

- A. The Court May order Ex parte proceedings
- B. The Court may order default proceedings
- C. The Court may order attachment of judgment debtor's property
- D. The Court may issue arrest of Judgment debtor.

ANSWER: A

73. Assuming that police officer H obtains search warrant to search the premise of Ms X in want of some material evidence related to a crime of forgery. One is necessarily true:

- A. H may only search the premises described in the warrant and may only search for the items listed in the warrant
- B. H may not search X `s premise before securing X`s consent.
- C. H may search the premise only in day time.
- D. Court may not order search to be conducted at night

E. H may not follow the procedure of knock and Notice Doctrine during conducting search on X premises.

ANSWER: A

74. Which one of the following is **FALSE** about private prosecution under Ethiopia Criminal Procedural Law?

A. Private Prosecution can be instituted for crimes not punishable up on compliant.

B. Private Prosecution may institute proceeding against an accused after authorizing by Prosecutor because of insufficiency of evidence that proof accusation.

C. Private prosecution shall conduct the proceeding at his peril and at his own expense.

D. Private prosecution can withdraw his proceeding at any time before judgment.

E. Where private Prosecution failed to appear at the date fixed for a hearing a judge can strike out the charge.

ANSWER: A

75. Which one of the following is **FALSE** about an accusation and complaint?

A. As a rule communication of information to the police about the commission of the crimes is a duty.

B. As a rule communication of information to the police about the commission of the crimes is a right.

C. In order to police conducting an investigation concerning offences punishable up on compliant prior consent of the injured party is required.

D. Accusation is information communicated to the police concerning an offence which is a predominantly public nature.

E. Offences punishable up on compliant purely affecting the interest of private individuals.

ANSWER: A

76. Mr. P, a prosecutor in Lideta High Court, charged Mr. K of robbery and successfully established his case to the required degree before the court. Consequently, the court demands the defendant to present his defence. Which one of the following is **TRUE**?

- A. The defendant, failing to cast reasonable doubt on the prosecution case would be convicted.
- B. The court of its own motion may still require additional evidence.
- C. The defendant, failing to establish his innocence, would be convicted.
- D. The defendant failing to refute the prosecution evidence altogether would be convicted.
- E. The defendant may not refuse to present his defense.

ANSWER: A

77. If you are an appellate advocate, and the client request you to file an appeal, which of the following will automatically make you file the appeal?

- A. The fact that the case is finalized in the trial court.
- B. The existence of any kind of error that can be observed from the records of the trial court.
- C. The absence of any remedy in the trial court.
- D. Interlocutory matters.
- E. Error of Law

ANSWER: A

78. Which of the following is not among the mode of authentication of document?

- A. Authentication by undertaking oath
- B. Authentication by admission
- C. Authentication though presumption
- D. Authenticating through expert opinion

ANSWER: A

79. Which of the following statement is **incorrect** about examination of witnesses under Ethiopian legal system? ____

- A. Cross examination aims at repairing of the damages that are caused during examination in chief.

- B. It is only those facts on which a witness has direct and indirect knowledge that are subject to questions.
- C. Misleading and confusing questions should not be brought to the attention of witness
- D. A witness will answer questions that are brought against him during examination in chief, re-examination and cross examination

ANSWER: A

80. Which of the following statement is wrong about privilege regarding testimony by witness?

- A. There is no privilege that are accorded to witness at all
- B. Privilege aims at encouraging desirable communication
- C. Privilege aims at maintaining confidential information's
- D. Attorney-client, doctors-patient, husband-wife benefits from such privilege

ANSWER: A

81. A type of demonstrative evidence rule which gives discretion to judges in deciding which demonstrative evidences to take or leave is _____ .

- A. Specific demonstrative rule
- B. General demonstrative rule
- C. Documentary evidence
- D. Prospective demonstrative evidence

ANSWER: A

82. Which of the following is **incorrect** about how and when documentary evidences are to be produced?

- A. It is possible to present documentary evidences at any stage of court proceedings.
- B. Both plaintiff and defendants are required to list and attach list of documentary evidences when submitting Statement of claim and defense.
- C. Any kind of documentary evidence has to be produced before first hearing
- D. The court may under exceptional circumstance allow parties to produce documentary evidences at latter stages that are vital to determine fact in issue

ANSWER: A

83. The fifth year law students argue over various legal issues as usual. They undergo hot debate till students from other disciplines encircle them and give them a collective nick name “the living philosophers”. Where do you think they may get such power of reasoning?

- A. Taking the course of jurisprudence
- B. The wisdom they inherited from their family
- C. The skill they acquired in their local villages
- D. Godly given wisdom

ANSWER: A

84. One of the following fact describes the “Capable of being complied with” element of fidelity of law theorized by Fuller

- A. The FDRE government has issued a law that bans marriage and sexual affairs among men and women until 2027
- B. The Federal Negaret Gazette, over which national laws are, published uses only English and Amharic as a medium of communication while the country hosts more than 85 of illiterate and countryside residents
- C. The ruling party enacted a law that solely serves their interests during their stay in power and proposed a reform bill that equalizes all parties when they realize that they are beaten in election
- D. The Oromia regional state enacted a proclamation that can be understood only by professionals from law back ground.

ANSWER: A

85. “*Expository matters*” in the classification of laws by positivists refers to:-

- A. Laws set by men for men in pursuance of political rights
- B. Laws set by men for men as political superiors to political inferiors
- C. Laws like Criminal Law and Tax law
- D. Rules that apply when you enter worshipping places

ANSWER: A

86. One of the following is not true about *Wolfenden Report*

- A. It was done by the order of US Congress
- B. Introduced principle of harm
- C. Advocates for the new spirit of tolerance
- D. It is linked to the increase of Homosexuals including in the higher position of English government

ANSWER: A

87. Will Kymlicka's group specific right which is included in the article 39 of FDRE Constitution is called _____

- A. The Right to secession
- B. Self-government Rights
- C. *Polyethnic* Rights
- D. Special representation right

ANSWER: A

88. A critique politician who is annoyed by the discrepancy he observes between what he reads in the constitution regarding the selling of land and he actually sees in the day today activities of society said "*it is better if we say that selling land is permitted by Ethiopian laws*". To which school of jurisprudence do you link this politician?

- A. Sociological School
- B. Natural Law
- C. Historical School
- D. Legal Positivism

ANSWER: A

89. _____ among the laws Socrates recommended his followers to obey, which one is at the apex of hierarchy?

- A. The Laws of god
- B. The decision of officials
- C. The Laws of God
- D. The Laws of City State

ANSWER: A

90. Identify incorrect statement about content of employment contract

- A. Employer and employee has freedom to determine it in any manner
- B. Obligation of both employee and employer must be clearly defined
- C. Object of the employment contract must not be for the performance of unlawful acts
- D. Inclusion of clause regarding wage including rate and method of calculation
- E. Mandatory legal requirement relating to content of employment contract must complied

ANSWER: A

91. Identify statement that is incorrect about the relevant provisions of labor proclamation No.1156/2011

- A. Employees are free to divide and use their annual leave as they deem fit
- B. Strike is joint mechanism workers can use to ensure that their demands are answered
- C. In principle wages are paid to workers for the jobs they have done for their employers
- D. Dispute of private nature is required to be handled by the court.

ANSWER: A

92. One of the following is unjustified ground for termination of employment contract

- A. Sex
- B. Sickness
- C. Employment injury
- D. Age

ANSWER: A

93. One of the following is **not true** about collective bargaining under Ethiopian labor law

- A. Bargaining could be made between individual employees and employer
- B. Request for bargaining could be made either by employees or employer.

- C. Negotiating parties cannot agree below minimum standard stipulated under labor law.
- D. Collective bargaining mandatorily requires establishment of trade unions.

ANSWER: A

94. The General Manager of the XY Company known that one of his workers Mr. H was arrested two days ago. Moreover the supervisor of the arrested employee has informed the manager that the arrested worker may last for about 28 days. Assume you are the legal attorney of the company to whom the general manager of the company approaches for legal advice to know what he can do to protect the interest of his company. What will you advise him?

- A. He has suspend the employment contract the company has with the arrested employee
- B. He can take the case to the court and claim judicial termination of employment contract.
- C. He can terminate contract of employment and hire a replacement
- D. He has to tolerate and waits up until 28 days with paying his salary.

ANSWER: A

95. Which one of the following is odd with respect to source of labor law?

- A. Labor Proclamation
- B. Work Rule
- C. Collective bargain
- D. Employment contract
- E. Trade Unions.

ANSWER: A

96. K is energetic new worker in ABC Company. He has successfully completed his probation period on last month. His service in the company is far less than six months. However due to unforeseen circumstances occurred in the company the company will going to reduce work force in accordance with labor proclamation. Unfortunately K is among the workers who will go to be reduced. If k is approaches you for legal advice in relation to the duration of notice period he is entitled to under the law what will your advice

- A. Two month
- B. One month

- C. Three month
- D. Based on agreement with his employer

ANSWER: A

97. In light of Labor proclamation No. 1156/2011 one of the following is incorrect?

- A. Contract of employment may be concluded with legal person
- B. Contract of employment may not provide for less favorable condition for workers than the proclamation
- C. Contract of employment can be concluded only with natural person
- D. Contract of employment involves the consent of the workers to work under control of the employer

ANSWER: A

98. The administration of justice in general and the legal profession in particular, suffer from popular dissatisfaction actually attributable to such factors like: abuse of adversary system, the in civility among the legal professionals, and commercialization of the legal profession. Which one of the following would remain grand factor for the above factual allegations?

- A. The legal training institutions inclusive of law schools
- B. The law in books
- C. The law in practice
- D. The ministry of justice which badly enacted the law
- E. The ministry of education which badly framed the educational policy

ANSWER: A

99. Which one of the following judicial codes of conduct deliberately contravenes with the right to freedom of speech of judges?

- A. exparte-communication
- B. The act of receiving gifts

- C. The act of taking donation
- D. The act of bribery
- E. The act of engaging in extra-judicial activities

ANSWER: A

100. The ethical duty of competence of judges requires the latter?

- A. To have high calibre in legal knowledge, skill, thoroughness and preparation
- B. To have modest legal knowledge
- C. To have slight knowledge and skill in preparation of legal documents
- D. To waste minimum time in extra-judicial activities
- E. To be religious leader in certain ways that enables her/him to celebrate public morality

ANSWER: A

